

Residential Listing Agreement

Doc date: 2026-09-15

Exclusive Right to Sell — synthetic template modeled on the CAR Residential Listing Agreement

SYNTHETIC TEMPLATE — field structure for demo purposes only. Not an official California Association of Realtors form.

Property address: _____

APN (Assessor's Parcel Number): _____ **Seller:** _____

Listing price: _____ **Effective date:** _____

Expiration of listing: _____ **Exclusive right to sell:** _____

Terms grid	Value
Property / APN	____ / ____
Seller	____
Listing agent / broker	____ — ____
Price / term	____ . ____ to ____

1. Grant of exclusive right to sell

Seller grants Broker the exclusive authority to find a buyer ready, willing, and able to purchase the Property on the terms stated in this Agreement during the listing period. Seller will not grant the same authority to another broker for the same property during this period, and Seller's own efforts to find a buyer do not by themselves terminate Broker's right to compensation under Section 5.

2. Broker's services

Broker will market the Property through the services Broker ordinarily provides for residential listings, including preparation of listing materials, coordination of showings, and submission to the multiple listing service if Broker participates in one. Broker may assign licensees and unlicensed staff to perform parts of this work; Broker remains responsible for the listing.

3. Seller's principal obligations

Seller will keep the Property in reasonable condition for showings, will disclose to Broker known material facts affecting the Property or its value, will make title documents and service records available on request, and will cooperate in good faith with offers Broker presents. Seller will notify Broker promptly of any change in ownership, lien status, or occupancy.

Initials (seller): _____

Initials (broker): _____

4. Condition of the Property and disclosures

Seller is responsible for the disclosures Seller is required by law to make, including the transfer disclosure statement and any lead-based paint disclosure for pre-1978 housing. Broker will provide the statutory forms and will deliver copies of buyer-signed acknowledgments to Seller. Nothing in this Section makes Broker the guarantor of the Property's condition.

5. Broker compensation

If a sale closes during the listing period or within any protective period stated in Section 8, Seller will pay Broker the compensation agreed below. Compensation is a negotiated amount for services rendered and is not tied to the agency relationship Broker holds. Any cooperating-broker share is paid out of Broker's compensation.

Compensation item	Amount / rate
Total compensation on sale	____% of purchase price, or \$____ minimum
Cooperating broker share	____% of total compensation
Compensation due if Seller terminates without cause	\$____
Protective period after listing expiration	____ days

6. Multiple listing service participation

If Broker submits the listing to a multiple listing service, the listing will be governed by that service's rules in addition to this Agreement. Withdrawal or expiration of the listing under those rules does not waive compensation that has already been earned.

7. Access, lockbox and showings

Seller authorizes Broker to install a lockbox and to admit prospective buyers, cooperating licensees, and inspectors at reasonable hours, with notice to Seller where practicable. Seller may set blackout dates or other reasonable showing conditions by written notice to Broker.

Initials (seller): _____

Initials (broker): _____

8. Additional or special provisions

Any special term the parties agree to reduce to writing and initial here controls over the general terms of this Agreement. Verbal side agreements have no effect under this Section.

Special provision	Party initials
(space for negotiated special terms)	____ / ____
(space for negotiated special terms)	____ / ____

9. Protective provisions: title, liens and possession

Seller will deliver marketable title free of liens or encumbrances not accepted by the buyer, will obtain reconveyance of any deed of trust securing Seller's own financing at closing, and will disclose occupancy, lease, and possession arrangements that survive the sale.

10. Earnest money deposits

Broker may receive and hold an initial deposit in a neutral escrow or trust account as permitted by law, will submit it with the offer, and will thereafter direct it only on written instruction of the parties or as a court or the escrow holder directs.

11. Escrow and closing cooperation

The parties will open escrow promptly after acceptance, will supply documents the escrow holder reasonably requires, and will work toward the anticipated closing date. Time is of the essence only if the purchase agreement says so.

Initials (seller): _____

Initials (broker): _____

12. Mediation and binding arbitration

Before filing suit arising out of this Agreement, the parties will attempt mediation with a neutral mediator. If mediation fails, disputes will be submitted to binding arbitration on the terms stated in the purchase agreement or, if none, under the commercial arbitration rules then in effect. Each party bears its own mediation costs unless the arbitrator allocates otherwise.

13. Agency disclosure acknowledgment

Broker has explained the statutory agency disclosure and the options available to Seller. Seller acknowledges receipt of the disclosure document; Seller's initials on that document, not this Agreement, record the elected agency relationship.

14. Conflict of interest and dual agency

Broker may not accept compensation from more than one party to a transaction without written disclosure and consent. If Broker becomes a dual agent with written consent, Broker's duties narrow as the law provides, and neither party may expect Broker to advocate for that party against the other.

15. Reports, records and retention

Broker will retain the listing and transaction records for the period required by law and by Broker's brokerage policy, will make them available for inspection on reasonable notice, and will return Seller's proprietary materials at the end of the listing.

Initials (seller): _____

Initials (broker): _____

16. Electronic signatures and notices

The parties consent to signing and delivering this Agreement and related disclosures by electronic means, and agree that an electronic signature has the same effect as a handwritten one. Notices may be given by the methods stated in the purchase agreement or, if silent, by personal delivery, overnight courier, or email with confirmation.

17. Indemnification

Seller will indemnify Broker against claims arising from Seller's knowing misrepresentation of material facts about the Property or from Seller's breach of this Agreement. Broker will indemnify Seller against claims arising from Broker's own misrepresentation or willful misconduct.

18. Limits of Broker liability

Broker is not an attorney, accountant, engineer, inspector, or title company, and nothing Broker says replaces professional advice on those subjects. Broker's liability for any claim under this Agreement will not exceed the compensation Broker actually received, except where prohibited by law.

19. Survival and termination

Termination ends Broker's prospective duties but does not undo compensation already earned or the protective period in Section 8. Sections that by their nature should continue — indemnity, records, dispute resolution — survive termination.

Initials (seller): _____

Initials (broker): _____

20. Miscellaneous

If any provision of this Agreement is held unenforceable, the remainder stays in effect. This Agreement may be amended only in a writing signed by both parties. It is governed by the laws of the State of California. Captions are for convenience and do not limit meaning.

21. Entire agreement

This Agreement, together with any written addenda initialed by both parties, is the entire agreement between Seller and Broker concerning the listing and supersedes prior discussions on the same subject.

Broker's closing statement of compliance

Broker confirms that the listing materials submitted for this property were prepared by or under the supervision of the licensees named below, that required property data statements were delivered with the listing, and that any compensation offered to cooperating licensees was stated as a share of Broker's compensation.

Initials (seller): _____

Initials (broker): _____

Listing office contacts and showing coordination

Role	Name	Contact
Listing agent	_____	listing@demorealty.example
Transaction coordinator	_____	tc@demorealty.example
Broker of record	_____	office@demorealty.example
Preferred escrow	_____	orders@demoescrow.example

Signatures

(Jane Seller) _____

Seller

Date: _____

(Demo Realty) _____

Broker — Demo Realty DRE Lic. #01998765

Date: _____

(Alex Agent) _____

Listing agent DRE Lic. #01874567

Date: _____

Co-seller (if any) _____

Date: _____

Initials (seller): _____

Initials (broker): _____